
Case	Title / Nature of Case
9:00 AM Line 1 23-CIV-04152	GURPINDER BRAR VS. GENERAL MOTORS, LLC
GURPINDER BRAR GENERAL MOTORS, LLC	BRIAN K. CLINE STACEY S. DAVIS

Plaintiff's Motion to Enforce Settlement Pursuant to Breach of Contract and Equitable Principles

TENTATIVE RULING:

Plaintiff Gurpinder Brar's Motion to Enforce Settlement Pursuant to Breach of Contract and Equitable Principles is DENIED, as follows:

Plaintiff's unopposed Request for Judicial Notice ("RJN") is GRANTED pursuant to Evidence Code section 452 subd. (d).

This Song-Beverly Consumer Warranty Act action pertains to Plaintiff's 2024 Cadillac Lyric, purchased on July 4, 2023. Plaintiff filed this action on September 6, 2023 against the vehicle's manufacturer, Defendant General Motors, LLC. The parties entered private mediation on December 12, 2024. Plaintiff previously moved to enforce a settlement agreement reached at that mediation pursuant to Code Civ. Proc. section 664.6, and the motion was denied because Plaintiff did not meet its burden of proof to establish the existence of a writing signed by the parties within the meaning of that statute. (See RJN, Exh. A.)

Equitable Authority

Settlement agreements which do not meet the criteria for enforcement under Code Civ. Proc. section 664.6 may be enforced in the underlying action by a motion for summary judgment, which may necessitate amendment of the pleadings, or by amendment to the pleadings. (*Levy v. Sup.Ct. (Golant)* (1995) 10 C4th 578, 586, fn. 5; *Stewart v. Preston Pipeline Inc.* (2005) 134 CA4th 1565, 1584-1585; *Irvine v. Regents of Univ. of Calif.* (2007) 149 CA4th 994, 1000.) The California Supreme Court has reaffirmed that separate suits in equity, as opposed to the kind of equitable enforcement within the underlying action for which Plaintiff advocates, were an allowable method for enforcement prior to creation of the statutory procedure under Code Civ. Proc. section 664.6; "[b]efore section 664.6 was enacted, if one party to a settlement agreement failed to perform one of its obligations, the party seeking to enforce the agreement often had to file a separate lawsuit for breach of the settlement agreement. Section 664.6 offers a more efficient alternative procedure for resolution of disputes that arise over settlement agreements." (*Madrigal v. Hyundai Motor America* (2025) 17 Cal.5th 592, 600, fn 3.)

Here, Plaintiff seeks a fourth option, enforcement via inherent equitable authority or under Code of Civil Procedure (“CCP”) section 128 subd. (a). The Court’s inherent equitable authority does not permit the avoidance of established procedure. CCP section 128 subd. (a)(4) provides that every court shall have the power “[t]o compel obedience to its judgments, orders, and process, and to the orders of a judge out of court, in an action or proceeding pending therein.” However, the minute order with which Plaintiff asks the Court to compel obedience does not order anything other than the denial of Plaintiff’s prior motion under CCP section 664.6. (See RJN, Exh. A.)

In response to Defendant’s position that this Motion, if considered, should be held to the procedural requirements of a summary judgment motion, Plaintiff argues that “summary judgment exists to resolve factual disputes through a structured process” and that its procedural protections are not necessary here. (Reply, at p. 3:19-20.) On the contrary, summary judgment is to be “granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” (Code Civ. Proc. section 437c subd. (c).) Its purpose therefore is not to resolve factual disputes, but to offer an expedient method of resolving an action where the material facts are not in dispute, and the procedural requirements apply as much here as in any case.

No cause of action for breach of contract has been alleged in Plaintiff’s Complaint, and this Motion cannot succeed as a summary judgment motion, or a summary adjudication motion as to that cause of action, regardless of other procedural issues.

Plaintiff also argues that the Motion should be granted under theories of unjust enrichment and promissory estoppel. Neither have been pleaded as causes of action or remedies in Plaintiff’s operative Complaint, nor have the underlying facts regarding the settlement agreement been alleged. The Motion therefore cannot be granted on this basis.

The Court understands the apparent impetus for both this current motion and the prior motion whereby Plaintiff has sought to enforce the settlement agreement that at least Plaintiff believed was reached. Under the current circumstances, further motions related to this would not appear to be productive. The Court will address this with counsel at the upcoming August 3, 2026 Case Management and Trial Setting Conference.

In any event, this motion is accordingly DENIED.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court’s signature a written order consistent with the Court’s ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part “prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling” (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 2

24-CIV-04462 SCOTT SULLIVAN VS STATE OF CALIFORNIA; ET AL

SCOTT ALLEN SULLIVAN
STATE OF CALIFORNIA

PRO SE

Order to Show Cause Re: Dismissal

TENTATIVE RULING:

No tentative ruling, plaintiff to appear in person on this OSC re: Dismissal.
